MASTER PURCHASE AGREEMENT TEMPLATE

[TO BE USED ON THE SIDE OF THE BUYER]

PRICE – EUR 69

TECHNICAL DATA SHEET AND TERMS OF USE

Contract description

This Master Purchase Agreement sets forth the terms applicable to the supply of Products by the Supplier to the Buyer. This Template has been created in the prospective of the Buyer: for equivalent document on the Supplier's side, kindly refer to the Framework Supply Agreement Template.

In the Template you will find:

- **Forecast, purchase order process –** 6 months' forecast, purchase orders acceptance and modifications.
- **Intellectual Property Rights** – Buyer will retain IPR on the Products.
- **Order, Delivery, and Risk Allocation** – Procedures for placing orders, delivery terms and associated title transfer and risk of loss allocation.
- **Warranties and Liability** – allocation of product warranties, disclaimers, indemnification and limitation of liability.
- **Compliance Obligations** – Regulatory compliance, anti-corruption, export controls and data protection. The template is meant to be used worldwide so we do not refer to compliance requirements of any specific jurisdiction, although the regulations in place in USA, UK and EU are taken into consideration.
- **Confidentiality** – Protection of proprietary information
- **Term and Termination** – agreement duration, renewal conditions, termination rights (for cause or convenience), and post-termination obligations.
- **Governing Law and Dispute Resolution** – Jurisdiction and competent court. We propose ordinary court and laws. If you intend to choose the arbitration, we recommend to carefully consider the associated costs, which can vary significantly in consideration of the structure you select for the arbitration panel and of the relevant jurisdiction.

Recommended use

- The Template is suitable to be used on the side of the Buyer, for any kind of electronic or mechanical product or device.

- The liability and IPR indemnity section is a mere recommendation, in line with the general practice but should be revised and adjusted as required to fit with the specific business case.
- All commercial and technical terms are recommendations only and based on common market practice and should be revised and edited as needed.

Composition and language

Pages (including annexes) – 16 pages.

Language - English

Terms of use

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Disclaimer

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PREVIEW (EXTRACT)

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2. PURCHASE ORDERS

2.1 This Agreement shall govern all Purchase Orders ("**Purchase Order**") placed by Buyer for the supply of Products and/or services by Supplier as well as by Supplier's authorized distributors/sales agents (who shall also be bound by the terms hereof). This Agreement, together with each Purchase Order issued hereunder, shall constitute the entire agreement between the parties with respect to such Purchase Order. Buyer's purchase orders may be issued in writing, by mail or by electronic means as the Parties may from time to time agree. If any Purchase Order received by Supplier is not rejected within 3 (three) days nor has any issues or concerns related to any part of its contents been raised, it shall be deemed accepted. Supplier may only reject Purchase Orders if they are not in conformance with the terms and conditions of this Agreement. Nothing in this Agreement shall constitute an obligation by the Buyer and/or its Affiliates and Ordering Parties to issue Purchase Orders and/or to purchase any minimum volume of Products.

2.2 This Agreement shall constitute all of the terms and conditions governing the relationship between Buyer and Supplier relating to the purchase by Buyer and sale by Supplier of Products unless specifically agreed otherwise in a written amendment signed by both parties. Any terms and conditions set forth on any document or documents issued by Supplier either before or after issuance of any document by Buyer setting forth or referring to this Agreement are hereby explicitly rejected and disregarded by Buyer, and any such terms and conditions shall be wholly inapplicable to any purchase made by Buyer and shall not be binding in any way on Buyer, except to the extent such terms are expressly accepted in writing by an authorized representative of Buyer. Any changes to this Agreement must be specifically agreed to by both parties in a written amendment signed by authorized representatives of both parties.

2.3 Any Purchase Order issued by Buyer is expressly made conditional on Supplier's acceptance of all of the terms contained in the Purchase Order and this Agreement without deviation. Acceptance by Supplier of a Purchase Order may be evidenced by (i) Supplier's written consent, (ii) Supplier's commencement of performance or delivery of the Products, or (iii) Supplier's failure to reject the Purchase Order within five (5) business days of receipt as provided in Section 2.1. Acceptance of any Purchase Order constitutes acceptance of this Agreement in its entirety. Any purchase order accepted with modifications will require further written confirmation by the Buyer.

2.4 Supplier acknowledges that an Affiliate or any manufacturer or any other subcontractor of Buyer ("**Ordering Parties**") may purchase the Products on Buyer's behalf from the Supplier hereunder. Supplier hereby agrees Buyer may enforce the terms hereof directly against Supplier in respect of any Products which Buyer incorporates in the devices notwithstanding that such Products have been acquired by Ordering Parties.

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7. EPIDEMIC DEFECT

7.1 Supplier warrants that the Products will be free from epidemic defects. An "**Epidemic Defect**" is a defect which appears in more than 0.1% (or any lower percentage as specified in the applicable Technical Specifications) of the Products of the same or substantially the same type delivered by Supplier to Buyer or its Affiliates within the epidemic defect period as stated in the relevant specifications, or if no such period is stated, within any consecutive period of three (3) months, and which defect is either similar or substantially similar or has similar or substantially similar cause. In the event of an Epidemic Defect, Supplier shall urgently and at its costs and expense repair or replace Products delivered to Buyer which show such Epidemic Defect within the reasonably expected life time of such Products and Supplier shall further indemnify Buyer for all losses and damages incurred by Buyer, including without limitation all costs and damages in relation to recall of any Products or products in which the Products are used from the market (whether defective or not) in relation to the Epidemic Defect.

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21. EXPORT CONTROL

Each Party agrees to comply with all applicable export control laws and regulations, including but not limited to those of the Supplier's jurisdiction, Buyer's jurisdiction, the European Union, and the United States. The Supplier shall not be liable for any delays or failures in delivery arising from compliance with such laws and regulations, provided that Supplier provides Buyer with prompt written notice of any such delay and uses commercially reasonable efforts to minimize the impact. Buyer represents and warrants that it will not export, re-export, transfer, or otherwise make the Products available in violation of any applicable export control laws, including but not limited to: (i) exporting or re-exporting Products to any country, individual, or entity subject to export restrictions or sanctions; (ii) using the Products for any prohibited end-use, including but not limited to nuclear, missile, chemical, or biological weapons proliferation activities; and (iii) diverting Products contrary to any applicable export control laws. Buyer shall provide Supplier with reasonable documentation upon request to verify compliance with export control laws. Buyer shall indemnify and hold Supplier harmless from any and all claims, losses, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from Buyer's violation of applicable export control laws or regulations, provided that Supplier: (a) promptly notifies Buyer of any such claim; (b) gives Buyer sole control of the defense and settlement of such claim; and (c) provides reasonable cooperation in the defense at Buyer's expense.